

26STCV01027 26STCV01027

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-06

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Case Number: 26STCV01027 Hearing Date: August 6, 2026 Dept: 508

Superior

Court of California

County of Los Angeles

Department

508

YOGESH

JAISWAL,

Plaintiff,

vs.

RIVIAN

AUTOMOTIVE, INC.,

Defendant.

Case

No.:

26STCV01027

Hearing Date:

August 6, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT RIVIAN

AUTOMOTIVE, INC'S MOTION TO COMPEL BINDING ARBITRATION AND STAY CASE

Background

On

January 13, 2026, Plaintiff Yogesh

Jaiswal ("Plaintiff") filed this lemon law action against Defendant Rivian Automotive, Inc. ("Rivian"), alleging four causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, and (4) breach of the implied warranty of merchantability.

Rivian

now moves to

compel arbitration. Plaintiff did not file an opposition.

Request

for Judicial Notice

The Court grants Rivian's

request for judicial notice of Exhibit 2.

Legal

Standard

Code of Civil Procedure, section 1281 provides that "[a] written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract."

California law, similar to

federal law, favors enforcement of valid arbitration agreements. ((Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.) The

Federal Arbitration Act (FAA) and the California Arbitration Act (CAA) are liberal policies that create a presumption in favor of arbitration agreements, requiring that any doubts or ambiguities of an arbitration clause's scope to be resolved in favor of arbitration. ((Cronus

Investments, Inc. v. Concierge Services (2005) 35 Cal.4th 376, 384-386); (Baker v. Osborne Development Corp. (2008) 159 Cal.App.4th 884, 892 (Baker).) This strong public policy compels courts to liberally construe the terms of arbitration agreements. (Vianna v. Doctors' Management Co. (1994) 27 Cal.App.4th 1186, 1189.)

The general rule is that the

FAA governs all agreements to arbitrate in contracts "involving interstate commerce." ((Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.)

The term "involving" commerce "is broad and is indeed the functional equivalent of 'affecting'" commerce. ((Allied-Bruce Terminix Cos. v. Dobson (1995) 513 U.S.

265, 273-274.) However, even when the FAA governs the interpretation of arbitration clauses, California law will govern whether an arbitration agreement was formed in the first instance. (Baker, supra, at 893.)

To compel arbitration of a

plaintiff's claims, a defendant must first allege the existence of an agreement to arbitrate. ((Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219.) The burden then shifts to the plaintiff to prove the falsity of the agreement. ((Ibid.) After the Court determines that an agreement to arbitrate exists, it then considers objections to its enforceability. ((Ibid.)

If a valid agreement is found, "the court shall order the petitioner and the respondent to arbitrate." ((Code Civ. Proc., § 1281.2.)

Discussion

Rivian contends that an enforceable arbitration agreement exists with Plaintiff.

A. Existence of an Arbitration Agreement

Parties may be compelled to arbitrate a dispute if the court finds that (1) there is “an enforceable arbitration agreement between the parties,” and (2) the agreement covers the causes of action in the parties’ dispute. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.) A party seeking to compel arbitration may meet their initial burden by simply alleging “the existence of an agreement and support[ing] the allegation” by attaching a copy of the agreement or its relevant provisions. ((Condee v. Longwood Management Corp., supra, at p. 219.)

Here, Rivian asserts that “[o]n June 20, 2024, Plaintiff leased a 2024 Rivian R1S from Defendant Rivian. (Lease Agreement, Exhibit 1 to Ameripour Decl.) On that day, Plaintiff signed the Lease Agreement... On page 7 of the Lease Agreement is an agreement to arbitrate.” (Mot., 3:19-22.) In support, Rivian provides the lease agreement entered into with Plaintiff, where his signature and initials appear on multiple pages. (Ameripour Decl., Ex. 1.) The lease agreement includes an arbitration clause that states, “[y]ou and we agree that upon the election of either of us, any claims or disputes relating in any way to your lease account or transactions will be resolved by binding arbitration as discussed below, and not through litigation in any court (except for matters in small claims court).” (Id. at p. 7.)

The arbitration agreement from the lease further states that “[c]laims are subject to arbitration, regardless of what theory they are based on or whether they seek legal or equitable remedies. Arbitration applies to any and all such claims or disputes, whether they arose in the past, may currently exist, or may arise in the future. All such claims or disputes are referred to in this agreement as ‘Claims.’ However, claims relating to the scope, enforceability or validity of this agreement to arbitrate are for a court of competent jurisdiction to decide. The only exception to arbitration of Claims is that both you and we have the right to pursue a Claim in a small claims court instead of arbitration, if the Claim is in that court’s jurisdiction and proceeds on an individual basis. Claims in arbitration will proceed on an individual basis, on behalf of the named parties only. Neither you nor we waive the right to arbitrate by using self-help remedies, such as repossession, or by filing an action to recover the Vehicle, to recover a deficiency balance, or for individual injunctive relief. Arbitration procedures are generally simpler than court rules, and discovery

can be more limited. Certain rights that you have in court may not be available in arbitration.” (Ameripour Decl., Ex. 1, p. 7.) Rivian carried its burden that an arbitration agreement exists.

B. Arbitration Agreement Applies to this Dispute

Rivian contends that the arbitration agreement covers its dispute with Plaintiff because Plaintiff’s causes of action fall squarely within the scope of the arbitration clause.

“In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.)

“To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) The court should order parties to arbitrate, even if there are doubts, unless the clause clearly cannot be interpreted to cover the dispute. (California Correctional Peace Officers Assn. v. State of California (2006) 142 Cal.App.4th 198, 205.)

Plaintiff’s complaint alleges that “[o]n or around June 20, 2024, Plaintiff leased Subject Vehicle,” a 2024 Rivian R1S, which “was manufactured and/or distributed by Defendant.” (Compl., ¶¶ 6, 9.) Plaintiff’s complaint alleges that “[w]hen the Subject Vehicle was leased, Plaintiff received express written warranties in which Defendant undertook to preserve or maintain the utility or performance of Subject Vehicle or to provide compensation if there is a failure in utility or performance for a specified period of time.” (Compl., ¶ 11.) Further, “[d]uring Plaintiff’s ownership of Subject Vehicle, the Subject Vehicle manifested defects covered by Defendant’s express written warranties. These defects include but are not limited to: structural and electrical system defects.” (Compl., ¶ 12.)

Rivian contends that “Plaintiff’s Claims undoubtedly fall within the scope of the agreement to arbitrate, as the arbitration provision states that it applies to any and all claims or disputes relating in any way to the lease transaction. (Id. at page 7.)

Plaintiff's Complaint alleges violations of the Song-Beverly Consumer Warranty Act ('Song-Beverly') with respect to the leased Vehicle. Accordingly, Plaintiff's Claims on their face arise directly out of the lease relationship between Plaintiff as lessee/consumer and Rivian as the lessor/warrantor. There would be no claim for breach of warranties under Song-Beverly but for this relationship, as Plaintiff's Claims in the Complaint allege that this action arises out of the warranty obligations of Rivian, for a vehicle leased by Plaintiff, for which Rivian issued a written warranty, and for which implied warranties arose by virtue of the purchase." (Mot., 4:11-20.)

Plaintiff's complaint alleges that his leased vehicle presented defects in violation of the Song-Beverly Act and in violation of the vehicle's warranty. These grievances arise out of the lease agreement, which is how Plaintiff obtained his vehicle. Given that the arbitration provision pertains to claims that relate to the lease agreement, it is axiomatic that the arbitration clause applies to this dispute. Based on the foregoing, and in light of the lack of opposition, the Court grants Rivian's motion to compel arbitration.

Conclusion

Based on the foregoing, Rivian's motion to compel arbitration is GRANTED. The Court sets an arbitration status conference on August 5, 2027 at 10 a.m. in Dept. 508.

Rivian is ordered to provide notice of this Order.

DATED: August 6, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court